

THE RISE AND FALL OF THE SHAHS OF NEPAL

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The Himalayan Kingdom of Nepal perched between the two large neighbours of India and China, boasts about its geostrategic location, the source of multiple rivers and untapped natural resources, its world famed historical traditions, conventions and culture, local handicrafts, and a society having the presence of a myriad ethnic groups living together in harmony. For some analysts, Nepal, due to its landlocked feature seems to be isolated from the rest of the immediate and extended neighbourhood.

Nepal's history can be traced from the history of the Kirat dynasty (800 BC – 300 AD), the Lichhavi and the Thakuri period (300 AD – 1200 AD), the Malla period (1200 AD – 1769 AD) with the beginning of the Shah dynasty. Prithvi Narayan Shah, who founded the Shah dynasty, started a new phase for Nepal, which brought forth one of the most dynamic histories of politically active monarchies, amongst the few that still exists today.

Weak successors and internal family feuds brought the Rana family into the folds of political authority where incidents like the Kot massacre and the Basnyat conspiracy stabilised the Ranas into more power than that of the Royal family from the 1850s. The Muluki Ain (a collection of administrative procedures and legal frameworks for interpreting civil and criminal matters, revenue collection, landlord and peasant relations, inter-caste disputes, and marriage and family law) of 1854 became the corner stone of the Rana rule which remains to be the basic pillar of judiciary of modern Nepal. As Kanak Mani Dixit has pointed out Nepal became a *shogunate* under the Ranas, who ruled absolutely for 104 years, until King Tribhuvan overthrew the oligarchy.

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With the beginning of the First World War, political changes started taking place throughout the world, and Nepal was no exception. As Lord Acton to a letter to Bishop Mandell Creighton mentioned that “Power corrupts, and absolute power corrupts absolutely”, and for the case of the Ranas too, this saying was applicable. King Tribhuvan, who brought back glory to the Crown from the Ranas, had to literally wrest administrative and political power with the assistance of the Indian government. He became the King of the nation at the age of five, and due to political rivalry, was literally kept under house arrest and close surveillance till the end of the Second World War. He however managed to gain support of the Nepali Congress Party, as well as the Royal Nepalese Army and started playing a major role as popular discontent rose against the Rana regime. The decisive moment for Nepal arrived when King Tribhuvan fled the palace with his family and took refuge in the Indian Embassy in Kathmandu in 1950. The then Nepali Prime Minister Mohan Shamsheer Jang Bahadur Rana instated Tribhuvan's grandson Gyanendra, then three years old to the throne. However, due to international pressure and political manipulation by the Indian leadership, Tribhuvan was reinstated as the constitutional monarch of Nepal, and the Rana prime minister resigned on February 18, 1951, bringing an end to the Rana rule and the second innings of the Shah dynasty. With the death of Tribhuvan in 1955, Mahendra succeeded the throne, and started ruling the nation according to what he felt would strengthen the political character of the nation as well as would strengthen the monarchy. He had no faith in the parliamentary democratic system of governance and introduced a tailored Constitution in 1962.

King Mahendra conducted a royal takeover in 1960, usurping the elected government and jailing his democrat opponents. As Dixit had pointed out, Mahendra devised the Panchayat system, a kind of guided democracy which provided a multi-tiered system of representation but was commanded in all essential aspects by the King himself. Mahendra pushed Nepal into the modern era through a process of infrastructure building, social and economic development, and the creation of a nationalist ideology. The process of Panchayat Democracy found sustenance in the hands of Mahendra's son

Birendra, who took over the reigns of the kingdom in 1971. Birendra, who followed the footsteps of his father, made a futile attempt to modernise education, which further made the entire administration fully responsible on the bureaucracy, and foreign policy was allowed to stagnate. Dixit has noted that, when the people reacted against the authoritarian nature of the system in 1979–80, King Birendra called a plebiscite, asking the people whether they wanted a multiparty democracy or an ‘improved’ (amended or corrected to the demands of the people) Panchayat system. The latter won with a small margin, and Birendra got to rule as an absolute monarch for another decade; at which point, as a democratic wave engulfed Eastern Europe and the Soviet Union, political agitation returned. The People’s Movement of spring 1990 was not a revolution, but an uprising of the urban middle classes. To his credit and the pressure created by the Indian government, King Birendra did not wait for the bloodshed to escalate, and called for a multiparty democracy and a new Constitution.

ROLE OF THE MONARCH IN THE 90’S

The 1990 Constitution proclaimed Nepal to be a Constitutional Monarchy and set the parliamentary democratic setup of governance as the chosen method which would successfully voice the demands and necessities of a multi-lingual and multi-ethnic community like that of Nepal. The King willfully took the back seat and handed over political powers in the hands of the democratic leadership. The King turned into a religious and ceremonial head. But the immature and unstable democratic leadership failed to steer the nation out of the political dilemma that was put forth in the form of Maoists, who demanded the drastic change of the governing pattern of the state. The failure of the political parties to strengthen democratic roots immediately reinforced popular support and sympathy for the King, who till that point of time had taken no political action.

The insurgency that was initiated by the Maoists at different portions of the country was more than what the civilian police could tackle and the government immediately sought for the Royal Nepalese Army which functioned directly under the command of the King, who was then the ‘Supreme Commander-in-Chief’ of

the Armed forces. King Birendra did not accept the suggestion of initiating the Royal Nepalese Army in quelling the insurgent operations of the Maoists as he continuously harped on constitutional and democratic methods of resolving or at least pacifying the fighting rebels. Birendra though had been an absolute monarch before the 1990s, but after the first *Jan Andolan*, he was a monarch with a different mindset, who was not eager to break any sort of constitutional norms or rules, which in some ways strengthened the roots of the monarchy.

He was not eager to directly command the Nepalese Army in curbing the Maoists, but the upper echelon of the army was not ready to take command from civilian leaderships. In this situation, there was a sense of rift between the King and the civilian leadership, but it was always underlined with a sense of respect and admiration for the monarch, which rather strengthened a positive public opinion towards Birendra.

However, the sudden demise or assassination of the King and his entire family in a strange circumstance changed the entire political situation, within the Narayanhiti Palace as well as the entire country. As informed by government spokesperson, Dhirendra, Birendra's eldest son, in a fit of rage, killed his entire family along with numerous others and later shot and killed himself. Gyanendra, the third in succession, was the sole survivor along with his wife and son, and was immediately ushered in as the next monarch on the 239 year old Snake Throne.

THE NEW KING

Taking the position of the King was not new for the new incumbent as he had already been in that position before, in the 50s. But filling up the vacuum, which was created after Birendra's death was not an easy task. He took over the state during one of the most tumultuous period of the nation, when the entire democratic political leadership was in shambles and the country was torn and wracked by the worst kind of insurgency any of the South Asian nations had ever experienced. The Maoists in some parts of the nation had successfully

established a parallel government with a full legal and financial administrative structure in place.

Gyanendra, a poet and an environmentalist, believed deeply in the absolute rule of the monarch as cited by Justin Huggler in an article in *The Independent*. As he has pointed out “Gyanendra was born into royalty, but he was born into a royal dynasty in trouble, and at the age of four he played his part in restoring its power. It was to become a common thread through his life.”

From the very beginning, Gyanendra did not muster as much popular support that was enjoyed by the late King Birendra, which strengthened the monarchy and secured it even after the Maoists placed their principal demand of abolishing the monarchical system. But the decisions taken by Gyanendra rather hastened the process of ending the centuries old monarchical system. Starting from the shuffling and dissolution of governments, selection of Prime Ministers, clamping emergencies, using the Royal Nepalese Army to contain political demonstrators and frequent arbitrary arrests of prominent political leaderships, harsh and violent method of suppressing the insurgency and taking over complete political control from February 2005, dissociated the people from the palace and created a common referendum to abolish ‘God’ himself (as the King of Nepal was considered to be the reincarnation of Lord Vishnu).

THE END OF MONARCHY

In his last message to the nation on April 2006, when Gyanendra sensed the forthcoming changes he mentioned that, “While facing the challenges confronting the nation, democracy also emphasises acceptance of the preeminence of the collective wisdom in charting a future course.” It might be out of tune, but if Huggler is cited once more, then it is possible to infer the change that has brought in the monarch. Huggler has cited that “Jawaharlal Nehru, the prime minister of a newly independent India, was to make an official visit to Darjeeling, and one of the stops on his itinerary was at the school. Gyanendra and the other young Nepali princes were told they would have the honour of presenting the

visiting dignitary with a flower. But Gyanendra refused. 'I won't do it,' the precocious prince is said to have told the headmaster. 'I am higher than he.' Today, Nepal witnesses a changed man, who wears a temporary crown on his head, on the verge of being a normal citizen, a commoner."

Blaming a democratic leadership, looking forward for transparency, is unsound, but to curse a nurtured, tutored and historical monarch remains to be flawed. If a comparative study of the monarchies are made, that still survives till date in a globalised world, then it will be seen, that constitutional monarchs moves with the wave than creating one. They remain to be environmentalists, human rights activist than politicians. Rather than protecting the monarchy, Gyanendra actively took direct political actions and decisions to save the nation from impending crises; decisions which were both flawed and erring, hastening the end of the most traditional institution. Unlike the late King, Gyanendra moulded or violated the 1990 Constitution at will.

The biggest blow to the governmental setup was the February 2005 emergency, which was lifted on May 2005, even though retaining the ban on political parties and the press. It violated Article 27(3) as well as 115(1) of the 1990 Constitution, exhibiting the vulnerable nature of the Nepali polity in the hands of the monarch.

The demands of the removal of the monarchical system by the Maoists started echoing amidst other political avenues finding its vibrations amidst the students, youth, various governmental and non governmental as well as the masses. It led to the 2006 Democracy Movement or the *Loktantra Andolan* or the Second *Jan Andolan*, under the leadership of a seven party alliance having a clear understanding with the Maoists. The Andolan or Movement ended on April 24, 2006, when Gyanendra reinstated political power in the hands of the seven political parties' alliance, giving them the responsibility to ensure peace and multiparty parliamentary democracy in Nepal. The Maoists later demanded for the formation of a new Constituent Assembly, which would bring forth a new Republican Constitution for the nation.

In the same month, under the leadership of Girija Prasad Koirala, Gyanendra was stripped of all active political powers and was turned into a mere ceremonial head, and the nation was turned secular, even undermining the religious role that the King played in the nation. On the last days of 2007, the National Assembly unanimously passed a bill conforming to the removal of all references to monarchy and the monarch in the new constitution. Out of the 321 MPs, 270 voted for the abolition of monarchy and only three voted against, the remaining either abstaining or being absent. It was later agreed that Gyanendra have to leave the palace within the May 28th 2008, or else he would be forced out to a less formidable residence.

Presently, the intolerance towards the monarch is visible in various levels. Some are proposing Gyanendra's role as the President of the forthcoming republic, some are suggesting that he must abdicate every form of governmental position and royal privilege and live like a normal citizen, or turn himself into a businessman, creating job opportunities for the youth, and some are even going to the extreme of advocating that Gyanendra must be banished from the nation for good.

Till the time, Nepal does not bloom to its new political nature fully, it remains difficult to foresee Gyanendra's end as a prominent and influential citizen in the nation. However one can surmise that with the ushering of republicanism the Himalayan Kingdom of Nepal saw the end of one of its historical political institutions.

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